

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, AUGUST 27, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CROSBY v. TRAVIS CREDIT UNION, ET AL.
Case No. CU25-11860**

Demurrer

TENTATIVE RULING:

Defendant Travis Credit Union's demurrer to Plaintiff's complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

Plaintiff has failed to allege facts stating a cause of action for breach of contract. A cause of action for breach of contract involves four essential elements: 1) a contract, 2) plaintiff's performance, 3) defendant's breach, and 4) damages. (*Oasis W. Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821; *Poseidon Dev., Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1112.) Notwithstanding Plaintiff's conclusory allegation that a "contract existed" between the parties (Complaint, ¶ 32), Plaintiff explicitly alleged that Defendant "encouraged Plaintiff to engage in severance **negotiations**", Defendant presented Plaintiff with a settlement agreement and advised Plaintiff to consult an attorney before signing it, Plaintiff rejected the offer and presented to Defendant a counterproposal, and Defendant withdrew the severance offer (*id.* at ¶¶ 19-23). It is clear from the allegations that no contract was formed between the parties. Contentions, deductions, and conclusions of fact or law are not deemed admitted when considering a demurrer. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Plaintiff has failed to allege facts stating a cause of action for breach of the implied covenant of good faith and fair dealing. The implied covenant supplements existing contracts and does not require parties to negotiate in good faith prior to any agreement. (*McClain v. Octagon Plaza, LLC* (2008) 159 Cal.App.4th 784, 799.) A prerequisite to

any action for breach of the implied covenant of good faith and fair dealing is the existence of a contractual relationship between the parties and the covenant does not exist independently of an underlying contract. (*Avidity Partners, LLC v. State of Cal.* (2013) 221 Cal.App.4th 1180, 1204; *Molecular Analytical Sys. v. Ciphergen Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 711-712.) As previously explained, there was no contractual relationship between the parties entitling Plaintiff to any severance benefits.

Plaintiff has failed to allege facts stating a cause of action for promissory estoppel. “A cause of action for promissory estoppel is ‘basically the same as contract actions, but only missing the consideration element.’” (*Yari v. Producers Guild of Am., Inc.* (2008) 161 Cal.App.4th 172, 181, quoting *US Ecology, Inc. v. State of Cal.* (2005) 129 Cal.App.4th 887, 903.) Promissory estoppel requires: 1) a clear and unambiguous promise, 2) reliance by the party to whom the promise was made, 3) the reliance was reasonable and foreseeable, and 4) the party asserting estoppel must be injured by the reliance. (*Advanced Choices, Inc. v. State Dep’t of Health Servs.* (2010) 182 Cal.App.4th 1661, 1672.) In order for a promise to be enforceable, it must be “definite enough that a court can determine the scope of the duty, and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages.” (*West v. JPMorgan Chase Bank* (2013) 214 Cal.App.4th 780, 804.) Plaintiff has not alleged a clear and unambiguous promise on which Plaintiff relied, but did not provide consideration. Instead, Plaintiff alleged that she made a counterproposal, which Defendant ultimately rejected and which seemingly caused Defendant to withdraw its initial offer of severance benefits.

Plaintiff has failed to allege facts stating a cause of action for wrongful termination in violation of public policy. The essential elements of a claim of wrongful termination in violation of public policy are: 1) an employee-employer relationship, 2) the employer terminated the plaintiff’s employment, 3) the termination was substantially motivated by a violation of public policy, and 4) the discharge caused the plaintiff’s harm. (*Yau v. Allen* (2014) 229 Cal.App.4th 144, 154.) “In order to establish a common law cause of action for wrongful termination in violation of public policy the plaintiff must identify a public policy which: (1) is supported by a constitutional or statutory provision; (2) inures to the benefit of the public at large; (3) is fundamental and substantial; and, (4) is well established at the time of plaintiff’s discharge.” (*Deschene v. Pinole Point Steel Co.* (1999) 76 Cal.App.4th 33, 43; *Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 894.) Violation of public policy comes in four main categories: 1) refusing to violate a statute, 2) performing a statutory obligation, 3) exercising a statutory right or privilege, or 4) reporting a violation of a statute of public importance. (*Gantt v. Sentry Ins.* (1992) 1 Cal.4th 1083, 1090-1091, overruled on other grounds by *Green v. Ralee Eng’g Co.* (1998) 19 Cal.4th 44, 80, fn. 6.) Plaintiff’s only allegation of any act in violation of public policy is that the termination **may** somehow have been in retaliation for Plaintiff’s exercise of her right to legal representation for her negotiation of severance terms. (Complaint, ¶ 70.) But, Plaintiff alleged that she had already been terminated due to the elimination of her position before any exercise of this right. (*Id.* ¶¶ 18-21.) The exercise of her right to legal right to representation and negotiation of severance terms could not have been the reason for Plaintiff’s termination.

Plaintiff has failed to allege facts stating a cause of action for retaliation under the Labor Code. “In order to make a prima facie showing of retaliation, the plaintiff must show that he engaged in a protected activity, that the employer subjected him to an adverse employment action, and that a causal link exists between the protected activity and the employer's action.” (*Villanueva v. City of Colton* (2008) 160 Cal.App.4th 1188, 1198; *Yanowitz*, *supra*, 36 Cal.4th at 1042.) “[A]n adverse employment action is one that affects an employee, not a former employee, in the terms, conditions or privileges of his or her unemployment.” (*Featherstone v. S. Cal. Permanente Med. Group* (2017) 10 Cal.App.5th 1150, 1162.) As already explained, Plaintiff’s employment had already been terminated and Plaintiff was already a former employee when Defendant is alleged to have taken the “adverse action” of withdrawing the severance offer. (Complaint, ¶ 78.)

Plaintiff has failed to allege facts stating a cause of action for violation of the Unfair Competition Law. The Unfair Competition Law prohibits “any unlawful, unfair or fraudulent business act or practice”. (Bus. & Prof. Code § 17200; *Farmers Ins. Exch. v. Superior Court* (1992) 2 Cal.4th 377, 383.) Encouraging a potential party to a contract to consult an attorney prior to agreement is not unlawful, unfair, or fraudulent. Withdrawing an offer is not unlawful, unfair, or fraudulent.

Plaintiff has failed to allege facts stating a cause of action for intentional infliction of emotional distress. An essential element of a cause of action for intentional infliction of emotional distress is extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress. (*Potter v. Firestone Tire & Rubber* (1993) 6 Cal.4th 965, 1001.) The conduct must be so “extreme” that it exceeds all bounds of conduct that may be tolerated in a civilized society. (*Ibid.*) “Managing personnel is not outrageous conduct beyond the bounds of human decency but rather conduct essential to the welfare and prosperity of society.” (*Janken v. GM Hughes Elecs.* (1996) 46 Cal.App.4th 55, 80.) It is not extreme or outrageous to mislead employees into believing that they would be paid a retirement bonus if they continued to work for a company until it was sold, even if it demonstrated a callous disregard for the employees’ professional and personal well-being. (*Moncada v. W. Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 780-781.) It is not outrageous to present an employee with a termination package, then withdraw that package after it has been accepted and provide a less advantageous package. (*Trerice v. Blue Cross of Cal.* (1989) 209 Cal.App.3d 878, 884.) It is not outrageous to offer a severance agreement to Plaintiff, then withdraw the offer after Plaintiff rejects that offer and makes a counterproposal.

Plaintiff has not met her burden of showing “in what manner [s]he can amend h[er] complaint and how that amendment will change the legal effect of h[er] pleading.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens’ Inst. Int’l* (1989) 212 Cal.App.3d 1393, 1408.) Referencing an EEOC right to sue letter attached to the complaint does not explain how a former employee can state a cause of action against

her former employer for rejecting a severance counter-offer made after her employment was terminated.

DESTINY GRAVES v. KINDERCARE EDUCATION LLC, ET AL.
Case No. CU26-00775

Motion to Compel Arbitration

TENTATIVE RULING:

On the court's own motion, hearing on Defendant's motion to compel arbitration and case management conference is continued to September 3, 2026 at 9:00 a.m. Parties are reminded to check the tentative rulings on September 2, 2026, after 2:00 p.m.

TAMPLEN v. CAMPUZANO, ET AL.
Case No. CU26-03793

Motion to Strike

TENTATIVE RULING

The motion to strike directed against the complaint shall be taken off calendar. The motion has been rendered moot by the filing of Plaintiff's first amended complaint on July 6, 2026. (*JK3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477.)

IN THE MATTER OF PRESTIGE DEFAULT SERVICES, LLC
Case No. CU25-08421

Hearing re Surplus Funds

TENTATIVE RULING

Interested persons to appear.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002